

# NDPS Act Statutory Reference Matrix

## COMPREHENSIVE GUIDE: NARCOTIC DRUGS AND PSYCHOTROPIC SUBSTANCES ACT, 1985

Cross-sectional database covering penal provisions, description matrices, sentencing frames, special law exceptions, and indexed keywords.

| NDPS SECTION | NAME OF CRIME                                        | DESCRIPTION                                                                                                                                                                | PUNISHMENT                                        | BNS EQUIVALENT     | KEYWORDS                               |
|--------------|------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------|--------------------|----------------------------------------|
| 8            | Prohibition of Certain Operations                    | Prohibits cultivation, possession, sale, purchase, transport, import, export, use of narcotic drugs and psychotropic substances except for medical or scientific purposes. | Punishment as prescribed under relevant sections. | N.A. (Special Law) | possession, sale, transport, narcotics |
| 15           | Contravention relating to Poppy Straw                | Illegal possession, transport, or sale of poppy straw.                                                                                                                     | Up to 20 years RI and fine up to ₹2 lakh or more. | N.A.               | poppy straw, opium                     |
| 16           | Contravention relating to Coca Plant and Coca Leaves | Unauthorized cultivation and dealing with coca plants.                                                                                                                     | Up to 10 years RI and fine up to ₹1 lakh.         | N.A.               | coca leaves, cocaine                   |
| 17           | Contravention relating to Prepared Opium             | Illegal manufacture, possession, sale of prepared opium.                                                                                                                   | Up to 20 years RI and fine up to ₹2 lakh.         | N.A.               | opium                                  |
| 18           | Contravention relating to Opium Poppy and Opium      | Possession, transport, sale of opium.                                                                                                                                      | Up to 20 years RI and fine up to ₹2 lakh.         | N.A.               | opium, poppy                           |
| 19           | Embezzlement of Opium by Licensed Cultivator         | Misappropriation by licensed opium cultivator.                                                                                                                             | 10–20 years RI and fine ₹1–2 lakh.                | N.A.               | embezzlement, opium                    |
| 20           | Contravention relating to Cannabis                   | Cultivation, possession, production, sale of cannabis, ganja, charas.                                                                                                      | Up to 20 years RI and fine ₹2 lakh or more.       | N.A.               | cannabis, ganja, charas, marijuana     |
| 21           | Contravention relating to Manufactured Drugs         | Possession, sale, transport of heroin, morphine, etc.                                                                                                                      | Up to 20 years RI and fine ₹2 lakh or more.       | N.A.               | heroin, morphine                       |
| 22           | Contravention relating to Psychotropic Substances    | Illegal dealing with psychotropic substances.                                                                                                                              | Up to 20 years RI and fine ₹2 lakh or more.       | N.A.               | psychotropic substances, LSD           |
| 23           | Illegal Import into India or Export from India       | Unauthorized international trafficking.                                                                                                                                    | Up to 20 years RI and fine ₹2 lakh or more.       | N.A.               | smuggling, trafficking                 |
| 24           | External Dealings in Narcotic Drugs                  | Engaging in drug trade outside India.                                                                                                                                      | 10–20 years RI and fine ₹1–2 lakh.                | N.A.               | international drug trade               |
| 25           | Allowing Premises or Conveyance to be Used           | Permitting property or vehicles to be used for drug offences.                                                                                                              | Same punishment as principal offence.             | N.A.               | premises, vehicle                      |
| 25A          | Contravention relating to Controlled Substances      | Illegal handling of controlled substances used in drug manufacture.                                                                                                        | Up to 10 years RI and fine ₹1 lakh.               | N.A.               | controlled substances                  |

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| 27           | Consumption of Narcotic Drugs or Psychotropic Substances   | Personal consumption of prohibited drugs.                   | Up to 1 year RI or fine or both.    | N.A.           | drug consumption          |
| 27A          | Financing Illicit Traffic and Harboursing Offenders        | Funding drug trafficking or sheltering offenders.           | 10–20 years RI and fine ₹1–2 lakh.  | N.A.           | financing, harbouring     |
| 28           | Attempt to Commit Offence                                  | Attempting any NDPS offence.                                | Same as principal offence.          | N.A.           | attempt                   |
| 29           | Abetment and Criminal Conspiracy                           | Aiding or conspiring to commit NDPS offences.               | Same as principal offence.          | N.A.           | conspiracy, abetment      |
| 30           | Preparation to Commit Offence                              | Preparatory acts for NDPS offences.                         | Half of the maximum punishment.     | N.A.           | preparation               |
| 31           | Enhanced Punishment for Repeat Offenders                   | Increased punishment for subsequent conviction.             | Up to 1.5 times normal punishment.  | N.A.           | repeat offender           |
| 31A          | Death Penalty for Certain Repeat Offences                  | Repeat trafficking involving commercial quantities.         | Death penalty or life imprisonment. | N.A.           | repeat trafficking        |
| 32B          | Factors for Imposing Higher Punishment                     | Organized crime, violence, use of minors, etc.              | Aggravating factors.                | N.A.           | organized crime           |
| 37           | Offences to be Cognizable and Non-Bailable                 | Restricts grant of bail in serious NDPS offences.           | Procedural provision.               | N.A.           | non-bailable, bail        |
| 41           | Power to Issue Warrant                                     | Magistrate or authorized officers may issue warrants.       | Procedural provision.               | N.A.           | warrant                   |
| 42           | Power of Entry, Search, Seizure and Arrest Without Warrant | Search and seizure powers in buildings and enclosed places. | Procedural provision.               | N.A.           | search, seizure           |
| 43           | Power of Seizure and Arrest in Public Places               | Search and seizure in public places.                        | Procedural provision.               | N.A.           | public place              |
| 50           | Conditions for Search of Persons                           | Right to be searched before Magistrate or Gazetted Officer. | Procedural safeguard.               | N.A.           | Section 50, search rights |
| 52           | Disposal of Arrested Persons and Seized Articles           | Procedure after arrest and seizure.                         | Procedural provision.               | N.A.           | arrest procedure          |
| 57           | Report of Arrest and Seizure                               | Mandatory reporting to superior officers.                   | Procedural provision.               | N.A.           | report, seizure           |
| 60           | Confiscation of Drugs and Conveyances                      | Confiscation of seized drugs and vehicles.                  | Confiscation.                       | N.A.           | confiscation              |

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| 61           | Confiscation of Goods Used for Concealing Drugs        | Goods used to conceal drugs liable for confiscation.                 | Confiscation.        | N.A.           | concealment                  |
| 64A          | Immunity from Prosecution to Addicts Seeking Treatment | Addicts voluntarily seeking de-addiction treatment may get immunity. | Immunity provision.  | N.A.           | treatment, rehabilitation    |
| 68A–68Z      | Forfeiture of Illegally Acquired Property              | Attachment and forfeiture of assets derived from drug trafficking.   | Property forfeiture. | N.A.           | illicit property, forfeiture |